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THE UNITED REPUBLIC OF TANZANIA

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***ACT SUPPLEMENT***

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# THE AGRICULTURAL LAWS (AMENDMENTS) ACT, 2026

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THE UNITED REPUBLIC OF TANZANIA

**NO. 3 OF 2026**

I ASSENT
SAMIA SULUHU HASSAN,

*President*
[19th September, 2026]

**An Act to amend certain agricultural laws with a view to improving the regulation, administration and development of agricultural sector and related matters.**

**ENACTED** by the Parliament of the United Republic of Tanzania.

PART I
PRELIMINARY PROVISIONS

Short title

**1.** This Act may be cited as the Agricultural Laws (Amendments) Act, 2026.

Amendment of certain written laws

**2.** The written laws specified in various Parts of this Act are amended in the manner specified in their respective Parts.

PART II
AMENDMENT OF THE FOOD SECURITY ACT, (CAP. 249)

Construction Cap. 249

**3.** This Part shall be read as one with the Food Security Act, hereinafter referred to as the "principal Act".

Amendment of section 2

**4.** The principal Act is amended in section 2, by-

(a) deleting the definition of the term "other produce" and substituting for it the following:

""other produce" means any agricultural produce designated as such by the Minister under this Act;"; and

(b) adding the definition of the following term in the appropriate alphabetical order:

""food commodities" means any substance or product whether processed, partially processed or unprocessed intended to be or reasonably expected to be ingested by human in its intended use derived from cereals and other produce;".

Amendment of section 4

**5**. The principal Act is amended in section 4-

(a) in subsection (1), by adding the word "developmental" immediately after the word "regulatory"; and

(b) in subsection (2)-

(i) in paragraph (d), by deleting the words "marketing processing" and substituting for them the words "buying, processing and marketing";

(ii) by deleting paragraph (e);

(iii) by deleting paragraph (h) and substituting for it the following:

"(h) issue import and export permits for the cereals and other produce and their food commodities, without prejudice to food commodities safety and standards prescribed by the relevant authority;";

(iv) by adding immediately after paragraph (j) the following:

"(k) attend local and international fora on cereals and other

produce;"; and

(v) by renaming paragraphs (f) to (l) as paragraphs (e) to (m) respectively.

Amendment of section 6

**6.** The principal Act is amended in section 6(1) -

(a) by adding immediately after paragraph (a) the following:

"(b) issue guidelines for the better and effective carrying out of the provisions of this Act;";

(b) in paragraph (b), by deleting the word "arbitrate" and substituting for it the words "resolve disputes"; and

(c) by renaming paragraphs (b) and (c) as paragraphs (c) and (d) respectively.

Amendment of section 11

**7**. The principal Act is amended in section 11 by deleting the word "Board" appearing at the end of subsection (1) and substituting for it the word "Authority".

Amendment of section 12

**8.** The principal Act is amended in section 12(2) by deleting the word "Board" and substituting for it the word "Authority".

Amendment of section 19

**9.** The principal Act is amended in section 19, by-

(a) adding immediately after subsection (3) the following:

"(4) A person aggrieved by the decision of the Authority refusing to issue a licence may, within sixty days from the date of that decision, appeal in writing to the Minister."; and

(b) renumbering subsections (4) and (5) as subsections (5) and (6) respectively.

Amendment of section 31

**10.** The principal Act is amended in section 31 by deleting the words "the Minister may, upon the recommendation of the Board, approve" and substituting for them the words "may be determined by the relevant

authority".

Addition of section 32A

**11**. The principal Act is amended by adding immediately after section 32 the following:

"Designation of other produce

**32A**. The Minister may, by notice published in the *Gazette*, designate any agricultural produce as other produce for the purpose of this Act.".

Addition of section 33A

**12**. The principal Act is amended by adding immediately after section 33 the following:

"Stakeholders' meeting

**33A**.-(1) For the purpose of promoting the development of cereals and other produce, there shall be stakeholder's meeting which shall be responsible for-

(a) putting in place mechanisms for the management of shared functions, funding of shared functions and matters of common interest;

(b) making procedures for conducting annual general meetings;

(c) determining modalities for financing its activities and meeting, and

(d) establishing stakeholders' secretariat and other organs for better carrying out of the shared functions.

(2) The stakeholders' meeting shall be held at least once in a year.".

Addition of section 39A

**13.** The principal Act is amended by adding immediately after section 39 the following:

"Compounding of offences

**39A**.-(1) Notwithstanding the provisions of this Act relating to penalties, where a person admits in writing that he has committed an offence under this Act, the Director General or a person authorised by him in writing may, at any time prior to the commencement of the proceedings by a court, compound such offence and order that person to pay a sum of money not exceeding one half of the fine to which such person would otherwise have been liable to pay if he had been convicted of the offence.

(2) Where the person fails to comply with the compounding order issued under this section within the prescribed period, the Director General or a person authorised by the Director General may, in addition to the sum ordered, require the person to pay an interest at the rate prescribed in the regulations.

(3) Where the person fails to comply with subsection (2), the Director General may enforce the compounding order and interest accrued thereof in the same manner as a decree of a court.

(4) Where the Director General compounds an offence under this section, the person concerned shall not be liable to any prosecution in respect of such offence and, if any such prosecution

is brought in court, it shall be a good defence for such person to prove that such offence has been compounded under this section.

(5) The Director General shall submit quarterly reports of all compounded offences under this section to the Director of Public Prosecution.

(6) Money charged under this section shall be paid into the Consolidated Fund through the Government Electronic Payment System.

(7) The forms and manner of compounding of offences shall be as prescribed in the regulations made under this Act.".

## PART III
## AMENDMENT OF THE SISAL INDUSTRY ACT, (CAP. 30)

Construction Cap. 30

**14.** This Part shall be read as one with the Sisal Industry Act, hereinafter referred to as the "principal Act".

Amendment of section 2

**15.** The principal Act is amended in section 2 by inserting in the appropriate alphabetical order the following new definition:

""shared function" means a joint function undertaken by all sisal stakeholders and includes research, input supply, crop development, and promotion of fair trade and competition;".

Amendment of section 5

**16.** The principal Act is amended in section 5(2), by-

(a) deleting paragraph (d); and

(b) renaming paragraphs (e) to (h) as paragraphs

(d) to (g) respectively.

Amendment of section 22

**17.** The principal Act is amended in section 22(1), by-

(a) adding immediately after paragraph (f) the following:

"(g) to regulate processing, exportation and storage of sisal and sisal by-products;"; and

(b) renaming paragraphs (g) and (h) as paragraphs (h) and (i) respectively.

Addition of section 24A

**18.** The principal Act is amended by adding immediately after section 24 the following:

"Compounding of offences

**24A.-**(1) Notwithstanding the provision of this Act relating to penalties, where a person admits in writing that he has committed an offence under this Act, the Director General may, at any time prior to the commencement of hearing by a court of competent jurisdiction, compound such offence and order such person to pay sum of money not exceeding one half of the amount of the fine to which such person would otherwise have been liable to pay if he had been convicted of such offence.

(2) Where a person fails to comply with the compounding order issued under this section within the prescribed period, the Director General or a person authorised by him may, in addition to the sum ordered, require the person to pay an interest at the rate prescribed in the regulations.

(3) Where the person fails to

comply with subsection (2), the Director General may enforce the compounding order and interest accrued thereof in the same manner as a decree of a court.

(4) Where the Director General compounds an offence under this section, the person concerned shall not be liable to any prosecution in respect of such offence and, if any such prosecution is brought in court, it shall be a good defence for such person to prove that the offence has been compounded under this section.

(5) The Director General shall submit quarterly report of all compounded offences under this section to the Director of Public Prosecutions.

(6) Money charged under this section shall be paid into the Consolidated Fund through the Government Electronic Payment System.

(7) The forms and manner of compounding offences shall be as prescribed in the regulations made under this Act.".

## PART IV
## AMENDMENT OF THE SUGAR INDUSTRY ACT, (CAP. 251)

Construction Cap. 251

**19.** This Part shall be read as one with the Sugar Industry Act, hereinafter referred to as the "principal Act".

Amendment of section 2

**20.** The principal Act is amended in section 2, by-

(a) deleting the definition of the term "sugar by-

products" and substituting for it the following:

""sugar by-products" means any substance, other than sugar, produced during the process of manufacturing sugar or any subsequent downstream products;"; and

(b) inserting in the appropriate alphabetical order the following new definitions:

""raw sugar" means a partially processed and purified cane or beet sugar in crystal form;

"refined sugar" means purified and granulated sugar manufactured from raw sugar through a purification process which includes affination, melting, chemical treatment, filtration, decolorisation and re-crystallisation; and

"special sugar" means sugar produced in various forms with specific characteristics or uses to meet particular requirements, including superfine or caster sugar, powdered or icing sugar and liquid or syrup sugar, derived from processing conventional crystalline or any other sugar;".

Amendment of section 15

**21**. The principal Act is amended in section 15 by deleting subsection (1) and substituting for it the following:

"(1) A person who intends to install a mill or facility to manufacture sugar for domestic use, refined sugar for industrial use, special sugar or distillery products from sugarcane, sugar beets or sugar by-products shall apply for registration to the Board in a manner prescribed in the regulations.".

Amendment of section 18

**22.** The principal Act is amended in section 18-

(a) by deleting subsection (1) and substituting for it the following:

"(1) The Board shall have the power to issue sugar import licences to a person who intends to import sugar for domestic use, refined sugar for industrial use, or raw sugar for manufacturing of refined sugar.";

(b) in subsection (3) by deleting the phrase "the local sugar production is below the level of sugar requirement at a particular time" and substituting for it the following:

"(a) the local sugar production for domestic consumption is below the level of sugar requirement at a particular time; and

(b) in case of importation of raw sugar, the applicant possesses an operational refinery.".

Amendment of section 21

**23.** The principal Act is amended in section 21, by-

(a) deleting subsection (1) and substituting for it the following:

"(1) The Board shall, for the purpose of monitoring development or expansion of sugar production, enter into a performance contract with a manufacturer of sugar.

(2) The board shall, within sixty days from the date of issuance of a licence, enter into a performance contract with an importer of raw sugar for the purpose of ensuring that the quantity of raw sugar imported corresponds with the production capacity and input-output ratio of the refinery."; and

(b) renumbering subsection (2) as subsection (3).

Amendment of section 42

**24**. The principal Act is amended in section 42, by-

(a) deleting subsections (1) and (2) and substituting for them the following:

"(1) A person who intends to repackage sugar into any material or brand, different from its original packaging for the purpose of rebranding shall apply to the Board for registration:

Provided that, this requirement shall apply to locally manufactured sugar.

(2) The size of repackaged sugar allowable under subsection (1) shall not exceed 100 grams.

(3) The manner and procedures for application for registration under this section shall be as prescribed in the regulations."; and

(b) renumbering subsection (3) as subsection (4).

Amendment of First Schedule

**25**. The principal Act is amended in paragraph 1 of the First Schedule by adding immediately after subparagraph (2) the following:

"(3) The Director General shall be the Secretary to the Board.".

Amendment of Second Schedule

**26**. The principal Act is amended in the Second Schedule-

(a) by deleting the word "Principal" wherever it appears and substituting for it the word "Rector";

(b) in paragraph 2, by-

(i) deleting item (b) appearing in subparagraph (1) and substituting for it the following:

"(b) six other members who shall, upon recommendation of the Board of Directors, be appointed by the Minister as follows:

(i) a representative of the apex

organisation of sugar manufacturers;

(ii) a representative of the apex organisation of sugarcane growers;

(iii) a representative of a technical training institute;

(iv) a representative of sugar research institute;

(v) a representative of the ministry responsible for agriculture; and

(vi) a representative of the Board.”; and

(ii) adding immediately after subparagraph (1) the following:

“(2) The Rector of the Institute shall be the Secretary to the Council.”.

## PART V
## AMENDMENT OF THE TEA INDUSTRY ACT, (CAP. 275)

Construction Cap. 275

**27.** This Part shall be read as one with the Tea Industry Act hereinafter referred to as the “principal Act”.

Amendment of long title

**28.** The principal Act is amended in the long title by deleting the words “and the Tanzania Small-holder Tea Development Agency”.

Amendment of section 2

**29.** The principal Act is amended in section 2, by-

(a) deleting the definition of the term “Agency”;

(b) deleting the words “or the Agency” and the words “or Agency’s” appearing in the definition of the term “financial year”; and

(c) deleting the words “the Agency” appearing in the definition of the term “stakeholder”.

Amendment of heading to Part II

**30.** The principal Act is amended in the heading to Part II by deleting the words "AND THE TANZANIA SMALL-HOLDER TEA DEVELOPMENT AGENCY".

Amendment of section 3

**31.** The principal Act is amended in section 3, by-

(a) deleting the words "and Development Agency" appearing in the marginal note;

(b) deleting the opening phrase to subsection (1) and substituting for it the following:

"(1) There shall continue to exist the Tea Board of Tanzania which shall-"; and

(c) deleting subsection (2) and substituting for it the following:

"(2) The provisions of the Schedule shall have effect as to the functions, powers, responsibilities, constitution and proceedings of the Board .".

Amendment of section 4

**32.** The principal Act is amended in section 4 by deleting the words "or the Agency".

Amendment of section 5

**33.** The principal Act is amended in section 5-

(a) in subsection (4), by-

(i) adding immediately after paragraph (g) the following:

"(h) strengthen market systems to enable farmers or processors to access reliable domestic and international tea markets;

(i) enhance capacity building for small-holder tea growers;

(j) strengthen the existing ground level tea grower groups;

(k) facilitate development of tea cultivation in new areas;

(l) promote and develop small holder tea growers;

(m) facilitate extension services to small-holder tea growers;

(n) mobilise small-holder tea growers in the

construction of green leaf processing facilities;

(o) organise and assist small-holder tea growers in mobilising resources from other stakeholders;"; and

(ii) renaming paragraphs (h) and (i) as paragraphs (p) and (q) respectively;

(b) by adding immediately after subsection (4) the following:

"(5) The matters relating to small-holder tea growers shall be dealt with by a specific directorate designated by the Board for that purpose.";

(c) in subsection (7), by deleting the reference to subsection (6) and substituting for it the reference to subsection (7); and

(d) renumbering subsections (5) to (7) as subsections (6) to (8) respectively.

Amendment of section 31

**34.** The principal Act is amended in section 31, by-

(a) adding immediately after paragraph (c) the following:

"(d) for promotion and development of small-holder tea growers and the discharge of the functions of the directorate dealing with matters relating to small-holder tea growers;

(e) for facilitation of extension services to small-holder tea growers;"; and

(b) renaming paragraphs (d) and (e) as paragraphs (f) and (g), respectively.

Addition of section 32A

**35.** The principal Act is amended by adding immediately after section 32 the following:

"Saving and transitional provisions

**32A**.-(1) Upon disestablishment of the Tanzania Small-Holder Tea Development Agency-

(a) all employees of the

disestablished Tanzania Small-holder Tea Development Agency shall, on the effective date, be transferred to, and designated as employees of the Board; and

(b) all assets and liabilities vested in the Tanzania Small-holder Tea Development Agency shall, on the effective date, be vested in the Board.

(2) For the purpose of this section, "effective date" means the date on which the Minister may, by notice published in the *Gazette,* determine.".

Amendment of Schedules

**36.** The principal Act is amended-

(a) in the First Schedule by designating the contents of the First Schedule as the Schedule;

(b) in paragraph 2(1) of the Schedule as designated, by-

(i) deleting item (d) and substituting for it the following:

"(d) one representative of institutions responsible for agricultural research matters;"; and

(ii) deleting item (e) and substituting for it the following:

"(e) one representative from the ministry responsible for local government;"; and

(c) by deleting the Second Schedule.

Passed by the National Assembly on 27th August, 2026

BARAKA ILDEPHONCE LEONARD,
Clerk of the National Assembly

PARLIAMENT OF TANZANIA
BUNGE LA TANZANIA
UHURU NA UMOJA